UNIT 4

Gender-Based Violence

concept • types • human rights • harassment • domestic violence • causes • impact

1. The Concept of Violence

Violence = the intentional use of physical force, power, threat or coercion against a person or group that results in, or is likely to result in, injury, psychological harm, deprivation or death (WHO).

Gender-based violence (GBV) = any harmful act directed at a person **because of their gender** or that affects one gender disproportionately. The UN **DEVAW (1993)** defines violence against women as "any act of gender-based violence that results in physical, sexual or psychological harm or suffering to women, including threats, coercion or arbitrary deprivation of liberty, whether in public or private life."

Q1. Define violence and gender-based violence. What are its key features?

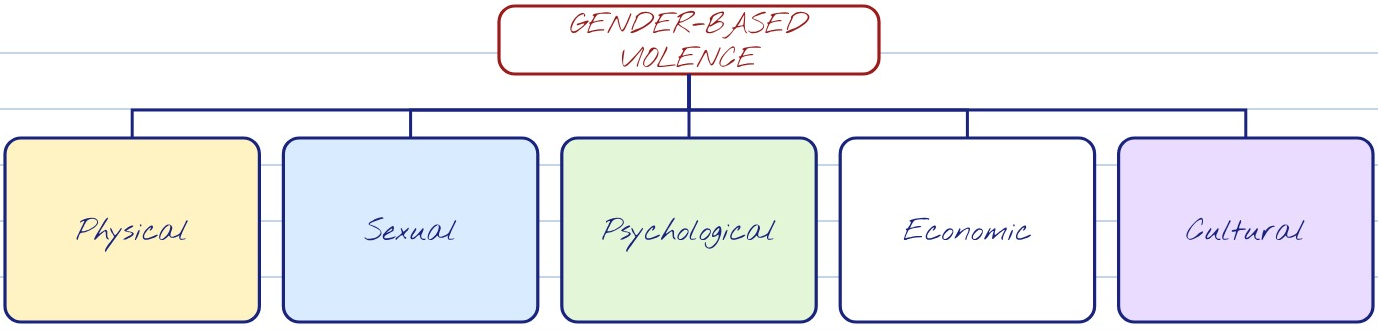
- Rooted in **unequal power relations** between women and men (patriarchy).
- Happens in **private** (home) and **public** (street, workplace, online) spaces.
- Often **normalised** or blamed on the victim; under-reported due to shame, fear, dependence.
- Victims are mostly women, girls and sexual minorities; men and boys can also be victims.
- Perpetrators : partner, family member, acquaintance, employer, stranger, even the state.

GBV = violence + gender inequality + power and control

2. Types of Gender-Based Violence

Q2. Explain the types of gender-based violence.

- **Physical** : hitting, slapping, burning, acid attack, murder, forced abortion.
- **Sexual** : rape, marital rape, molestation, sexual harassment, forced prostitution, trafficking.
- **Psychological or emotional** : insults, threats, isolation, constant control, stalking.
- **Economic** : denying money, taking salary, preventing work or property rights.
- **Structural or cultural** : female foeticide, child marriage, dowry, honour killing, witch-hunting, FGM (global), denial of education.
- **Digital or cyber** : online trolling, morphing, non-consensual image sharing, cyber-stalking.



Type	Examples
Physical	Beating, burning, acid attack
Sexual	Rape, groping, harassment, trafficking
Emotional	Abuse, threats, isolation, stalking
Economic	Control of money, no property, no job
Cultural	Dowry, child marriage, honour killing, foeticide
Cyber	Trolling, morphing, doxxing, revenge porn

Across a woman's life cycle

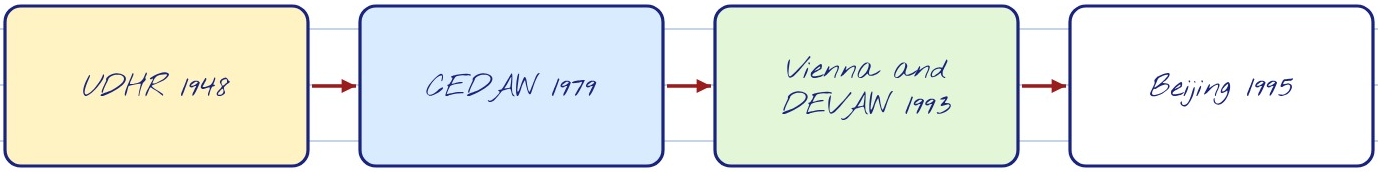
- **Before birth** : sex-selective abortion. **Infancy** : infanticide, neglect. **Girlhood** : child marriage, abuse, less food and school.
- **Adolescence** : eve-teasing, trafficking, acid attacks. **Adulthood** : domestic violence, rape, dowry harassment. **Old age** : abandonment, witch-branding, elder abuse.

3. Gender-Based Violence from a Human Rights Perspective

Q3. Why is violence against women a human rights violation?

Ans. It denies women the right to life, liberty, equality, dignity, bodily integrity and freedom from torture and discrimination - rights guaranteed to every person.

- **UDHR 1948** Art. 1-3, 5 : equality, life, security, no cruel treatment.
- **CEDAW 1979** and General Recommendation 19 (1992) : GBV is discrimination.
- **Vienna Conference 1993** : "Women's rights are human rights"; **DEVAW 1993**.
- **Beijing 1995** : violence against women is a critical area of concern.
- **State responsibility** : to prevent, investigate, punish and give remedy (**due diligence**) - even for acts by private persons.
- **India** : Art. 14, 15, 21 (right to live with dignity); judgments like **Vishaka (1997)**, **Nirbhaya reforms (2013)**.



Human-rights approach means

- Victim is a **rights-holder**, not a "problem" or "shame of family".
- State and society must **prevent, protect, prosecute, provide** (4 Ps).
- Focus on **consent**, dignity, equality and justice rather than "honour".

4. Sexual Harassment

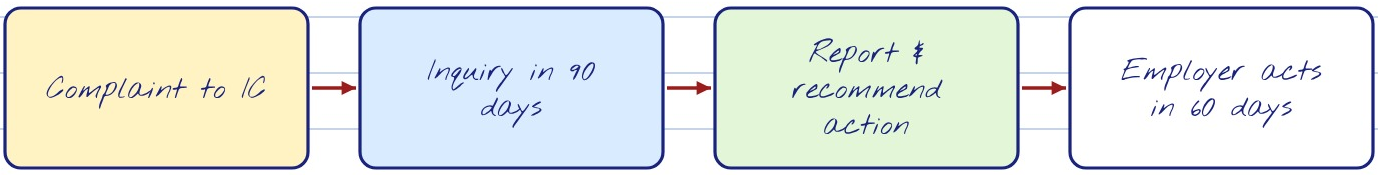
Q4. What is sexual harassment? Explain its forms.

Ans. Unwelcome sexual behaviour (physical, verbal or non-verbal) that offends or humiliates, creating a hostile or intimidating environment.

- **Physical** : unwanted touch, pinching, blocking the way, forced contact.
- **Verbal** : sexual jokes, comments on body, repeated proposals, obscene calls.
- **Non-verbal** : staring, gestures, showing porn, stalking, online messages.
- **Quid pro quo** : demand for sexual favour in return for job, grade or promotion.
- **Hostile environment** : posters, remarks or behaviour that make the workplace unsafe.

Q5. Explain legal provisions on sexual harassment in India.

- **Vishaka v. State of Rajasthan (1997)** : Supreme Court laid down guidelines for workplaces (origin: Bhanwari Devi case).
- **POSH Act, 2013** (Sexual Harassment of Women at Workplace - Prevention, Prohibition, Redressal) : every office with 10 or more employees must form an **Internal Committee (IC)**; Local Committee at district level.
- Complaint within **3 months** (extendable); inquiry within 90 days; action under service rules; penalty on employer for non-compliance.
- Criminal law : BNS (earlier IPC 354A-D) - sexual harassment, assault, voyeurism, stalking.
- Colleges : UGC regulations on prevention of sexual harassment, anti-ragging cells.



What to do if harassed

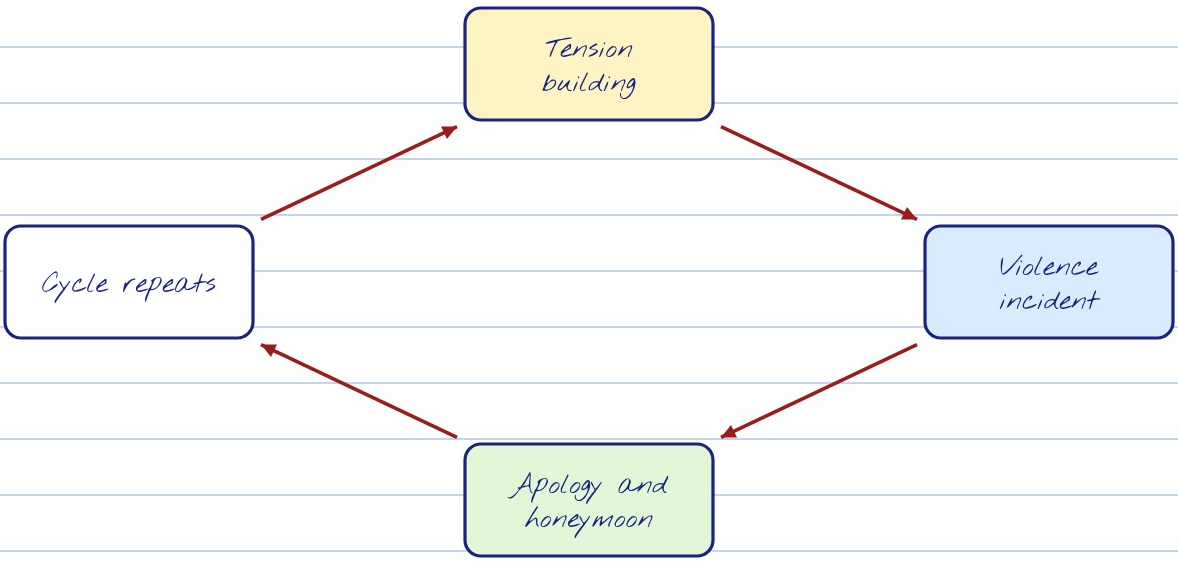
- Say NO clearly; Keep evidence (messages, dates, witnesses); report to IC, ICC, or police; seek support from friends and helplines.
- Bystanders : intervene safely, support the survivor, do not blame.

5. Domestic Violence

Q6. What is domestic violence? Explain the Protection of Women from Domestic Violence Act, 2005.

Ans. Violence by a partner or family member within the household - physical, sexual, verbal, emotional and economic abuse, including dowry harassment.

- **PWDVA 2005** covers women in a domestic relationship (wife, live-in partner, sister, mother) and gives **civil remedies**.
- **Reliefs** : protection order, residence order (right to live in shared household), monetary relief, custody of children, compensation.
- **Protection Officers** and service providers (shelter homes, medical facilities, legal aid), the Magistrate hears the case.
- Also : Section 498A IPC (now BNS s. 85) - cruelty by husband or relatives; **Dowry Prohibition Act, 1961**; dowry death (BNS s. 80).



Q7. Explain the cycle of violence (Lenore Walker).

- **Tension building** : arguments, threats, victim "walks on eggshells".
- **Acute violence** : beating, abuse.
- **Reconciliation or honeymoon** : apology, gifts, promises, blaming stress - victim hopes it will end.
- The cycle repeats and becomes more severe -> learned helplessness, it is hard to leave because of children, money, fear and social pressure.

6. Different Forms of Violence against Women

Form	Brief description
Female foeticide and infanticide	Killing of girl child before or after birth
Child marriage	Marriage below 18 years (Prohibition of Child Marriage Act 2006)
Dowry harassment and death	Demands for money or goods; cruelty; death within 7 years of marriage
Honour Killing	Killing for marrying outside caste or religion or against family wish
Acid attack	Throwing acid; IPC 326A (BNS s. 124) – 10 years to life
Rape and gang rape	Criminal Law (Amendment) Act 2013 after the Nirbhaya case (2012)
Trafficking	Selling women and girls for sex or labour (ITPA 1956)
Stalking and cyber crime	Following, repeated calls, morphing, trolling
Witch-hunting	Branding vulnerable women as witches; torture
Marital rape	Not yet an offence in India for adult wives (debated in courts)
Female genital cutting	Practised in parts of Africa, Asia (Bohra community debate in India)

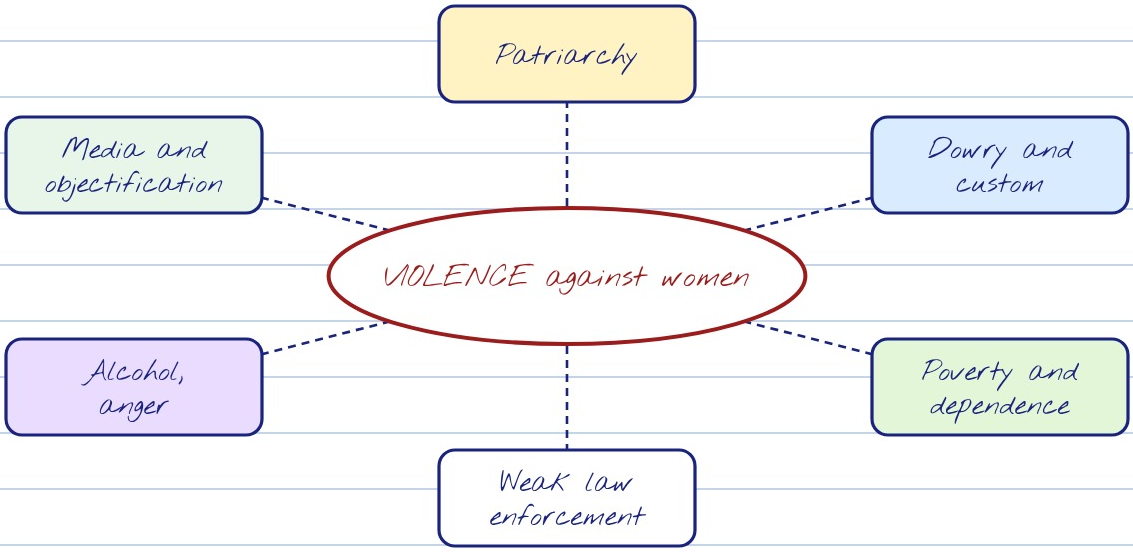
Q8. Mention some remedies and helplines.

- **181** Women Helpline, **112** Emergency, **1091** Women in distress, **1098** Childline, **1930** cyber crime (cybercrime.gov.in).
- One-Stop Centres (Sakhi), All Women Police Stations, Fast-Track courts, NCW, State Women Commissions.

7. Causes of Violence against Women

Q9. Discuss the causes of violence against women.

- **Patriarchy** : male control and ideas of ownership over women's bodies and lives.
- **Socio-cultural** : dowry, son preference, "honour", stereotypes, silence on abuse, victim-blaming.
- **Economic** : women's dependence, poverty, lack of property and jobs.
- **Legal and institutional** : slow justice, poor police response, weak implementation, low conviction.
- **Psychological** : power, anger, addiction (alcohol, drugs), learned violence in childhood.
- **Media** : objectification, glorified aggression, pornography.
- **Education gap** : lack of gender sensitisation and respect for consent.



8. Impact of Violence against Women

Q10. Explain the impact of violence on women, families and society.

Level	Impact
Physical	Injuries, disability, chronic pain, STIs, unwanted pregnancy, death
Psychological	Fear, depression, anxiety, PTSD, low self-esteem, suicidal thoughts
Social	Isolation, stigma, school or job loss, restricted mobility
Economic	Medical cost, lost wages, lost productivity, poverty
Family and children	Children witnessing abuse suffer trauma and may repeat violence
Society and nation	Lost human potential, high health and legal cost, slow development

9. Consequences of Gender-Based Violence

Q11. What are the consequences of gender-based violence and how can it be eliminated?

- **For the survivor** : trauma, ill health, fear, silence, loss of freedom, sometimes death or suicide.
- **For the community** : fear culture, fewer girls in school and jobs, normalised crime, weakened trust.
- **For the nation** : cost to economy and health system; violation of constitutional values; poor Gender Inequality Index.



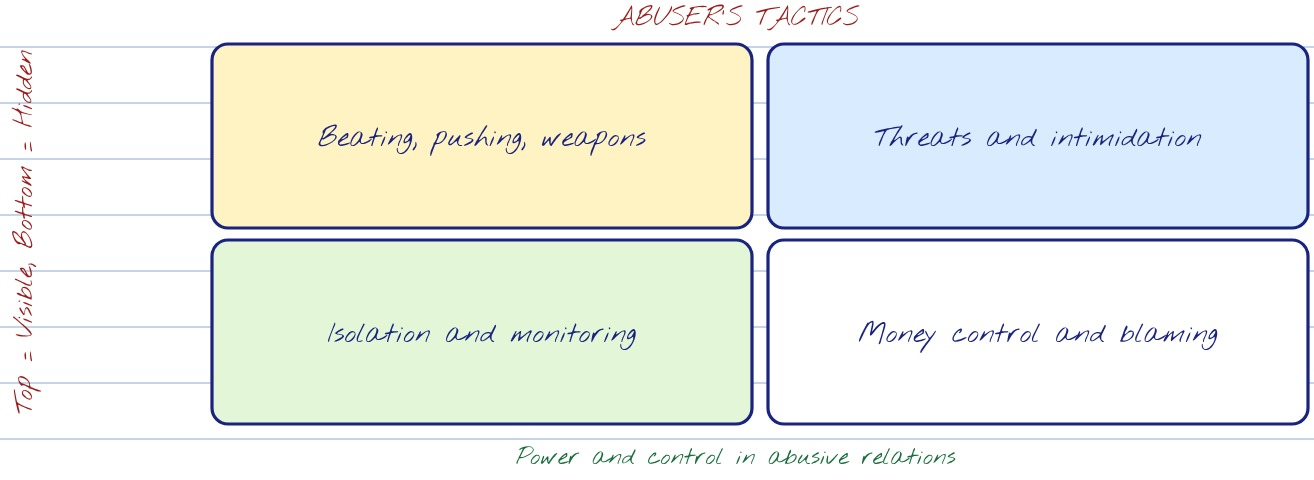
Measures to end GBV

- **Education** : gender sensitisation in school and college, teach consent and respect, engage men and boys.
- **Legal** : strict implementation, fast-track courts, police sensitisation, witness protection.
- **Economic** : jobs, property rights, skills for women's independence.
- **Social** : community vigilance, SHGs, break silence, support survivors; **16 Days of Activism** (25 Nov - 10 Dec), White Ribbon campaign.

10. Myths and Facts about Gender-Based Violence

Q12. Distinguish myths and facts about violence against women.

Myth	Fact
Violence happens only to poor, uneducated women	It happens in every class, caste, religion and education level
Women provoke it by dress or behaviour	The only cause of violence is the abuser's choice
Domestic violence is a private family matter	It is a crime and a human-rights violation
Strangers commit most rapes	Most offenders are known to the survivor
Men are never victims	Men, boys and transgender persons also face GBV, though women are the majority
A woman who stays must like it	Fear, children, money and shame trap survivors



11. Criminal Law Reforms and Institutions

Q13. Write about the Nirbhaya case and Criminal Law (Amendment) Act, 2013.

Ans. After the brutal gang rape in Delhi (Dec 2012), the **Justice Verma Committee** recommended reforms.

- Wider definition of rape, new offences - acid attack, stalking, voyeurism, sexual harassment, trafficking.
- Higher punishment (up to death in rarest cases for rape causing death or vegetative state).
- Later : Criminal Law (Amendment) Act 2018 - death penalty for rape of girls below 12; POCSO Act 2012 protects children below 18.
- Now codified in **Bharatiya Nyaya Sanhita (BNS) 2023**.

Institution	Role
National Commission for Women (NCW, 1992)	Reviews laws, investigates complaints, advises government
State Women Commissions	Same role at state level
One-Stop Centre (Sakhi)	Medical, police, legal, counselling help under one roof
Mahila Police Stations	Women-friendly policing
Protection Officers	Help under DV Act 2005
Fast-track courts	Speedy trial of sexual offences

Case study : "Priya at the workplace"

- Priya's manager sends late-night messages and hints that her promotion depends on "being friendly". She feels afraid.
- Identify : quid pro quo sexual harassment (POSH Act).
- Steps : Keep proof, say NO in writing, complain to Internal Committee within 3 months, seek support, employer must act.

12. Objective and Long Questions

Q14. Quick recall

- 1. DEVAW adopted in **1993**. 2. Vishaka guidelines **1997**. 3. POSH Act **2013** (IC for 10+ staff).
- 4. PWDVA **2005**. 5. Women's helpline **181**; emergency **112**. 6. Cycle of violence - **Lenore Walker**.
- 7. Economic abuse = control of money, work and property.

Q15. Long answers

- 1. Concept, types and forms of gender-based violence. (Sec. 1, 2, 6)
- 2. GBV from a human-rights perspective. (Sec. 3)
- 3. Sexual harassment and the POSH Act, 2013. (Sec. 4)
- 4. Domestic violence and PWDVA 2005; cycle of violence. (Sec. 5)
- 5. Causes, impact and consequences of violence against women; suggest remedies. (Sec. 7-9)

Violence is never the victim's fault - believe, support, act.